



Commercial Machine Sale Agreement

Your machine order, delivery details, and sale terms

This Commercial Machine Sale Agreement (the “Agreement”) is entered into as of the Effective Date in the Order Form by TGPACI LLC dba Bloomjoy Sweets (“Bloomjoy”), and the buyer identified in the Order Form (“Buyer”). The Order Form, these Standard Terms, and all attached exhibits are one agreement. If they conflict, the Order Form controls for that transaction, followed by the exhibits and then the Standard Terms.

Bloomjoy completes the order details before sending this agreement. Buyer confirms their information and signs. Use “None” for extras that are not included.

PART I — ORDER FORM

Quote or order number	
Agreement date	
Seller	TGPACI LLC dba Bloomjoy Sweets (“Bloomjoy”)
Bloomjoy mailing address	266 Thompson Ave, Mountain View, CA 94043
Bloomjoy legal email	legal@bloomjoysweets.com
Buyer full legal name	
Buyer mailing address	
Buyer email for notices	
Billing contact name email and phone	

1. Equipment and Price

Item	What is included	Qty.	Price each	Line total
Commercial Machine				
Custom machine wrap	☐ Not included ☐ Included; approved design attached			
Starter supplies				
Shipping and delivery		—	—	
Sales tax	Estimated; final invoice may adjust tax	—	—	
TOTAL PURCHASE PRICE				

Line total = quantity × price each. Enter \$0 for included items with no separate charge. Add the item line totals plus shipping and tax to calculate the Total Purchase Price.

2. Payment Schedule

Payment	Amount	Due
Order deposit	50%: \$	At signing / purchase
Remaining payment	50% plus approved adjustments: \$	Within 5 calendar days after Confirmed Delivery
How to pay		

Deposit refund policy — Bloomjoy selects one before signing: ☐ Refundable until Bloomjoy commits the order to production, less documented costs that cannot be recovered. ☐ Not refundable once received.
☐ Other: .

3. Delivery Details

Delivery address	
Delivery address type	☐ Commercial / business ☐ Residential / home
Receiving contact name and phone	
Delivery instructions (optional)	

4. Warranty and Support

Warranty coverage period	One year from the Agreement date, not the delivery date. Coverage is described in Exhibit B.
Inspection period	7 business days after Confirmed Delivery to report a material equipment problem. This does not waive later claims for hidden defects or problems covered by the warranty.
Manufacturer support	Remote technical help via WeChat, available 24/7 subject to manufacturer availability and policies
Bloomjoy support	Help getting started and coordinating further support during U.S. business hours, as described in Exhibit B
Bloomjoy Plus	Not included. Optional, separately purchased, and governed by the online terms described below.
Other included services	
Special terms / agreed exceptions	None

5. Signatures

Each signer represents that the signer is authorized to bind the identified party. Electronic signatures and counterparts are effective.

TGPACI LLC dba Bloomjoy Sweets

Signature:
Printed name:
Job title:
Date:

BUYER

Signature:
Printed name:
Job title:
Date:

PART II — STANDARD TERMS

1. Sale and Purchase. Bloomjoy will sell, and Buyer will purchase, the equipment and included items listed in the Order Form (collectively, the “Equipment”). No product, service, location, territory, permit right, revenue opportunity, or exclusivity is included unless expressly listed. Buyer is acquiring the Equipment for commercial use and has independently evaluated its business plan, site, and expected economics.

2. Price, Taxes, and Payment. Buyer will pay the Total Purchase Price on the schedule in the Order Form. The initial payment is a deposit applied to the purchase price; its refundability is governed by the selected deposit refund policy. Buyer is responsible for sales, use, excise, and similar transaction taxes, excluding taxes on Bloomjoy’s net income. Approved change orders, carrier adjustments, storage, redelivery, and buyer-caused accessorial charges may be added to the final invoice. Overdue amounts accrue interest at the lesser of 1.0% per month or the maximum lawful rate, plus reasonable collection costs. Buyer may not set off unrelated claims against an amount due.

3. Order Changes and Cancellation. Changes require written approval and may affect price and schedule. If Buyer cancels after Bloomjoy or its supplier commits the order, Buyer is responsible for documented nonrecoverable production, customization, freight, storage, and cancellation costs, subject to the deposit refund policy in the Order Form. Bloomjoy will return any remaining refundable balance after those amounts are determined.

4. Delivery; Confirmed Delivery. Delivery dates are good-faith estimates unless the Order Form expressly states a guaranteed date. “Confirmed Delivery” occurs when the Equipment is physically tendered at the Delivery Point and Buyer signs the Delivery and Commissioning Certificate, or when Buyer receives the Equipment and does not provide a written notice of material shipping damage or a material quantity discrepancy within two business days. A commissioning item that does not prevent delivery does not postpone Confirmed Delivery unless the Order Form expressly says otherwise. Buyer will provide safe access, an authorized recipient, and any required unloading assistance. Re-delivery or storage caused by Buyer is chargeable to Buyer.

5. Risk of Loss; Title; Security Interest. Risk of loss passes to Buyer at Confirmed Delivery, except to the extent a carrier claim is controlled by Bloomjoy under the agreed shipping and delivery service. Title passes only after Bloomjoy receives all amounts due for the Equipment. Until then, Buyer grants Bloomjoy a purchase-money security interest in the Equipment and its proceeds, will keep the Equipment identifiable and free of other liens, and authorizes Bloomjoy to file financing statements reasonably necessary to perfect that interest. Buyer may operate the Equipment in the ordinary course but may not sell, pledge, or relocate it outside the United States without Bloomjoy’s written consent before full payment.

6. Inspection and Acceptance. Buyer will inspect promptly. Visible damage, missing items, and material delivery discrepancies must be listed on the Delivery and Commissioning Certificate. Buyer has 7 business days after Confirmed Delivery (the Acceptance Review Period) to report a material nonconformity in reasonable detail with photographs, video, logs, or other available evidence. Bloomjoy may inspect and, at its option, repair, replace, complete, or credit the affected item. Acceptance does not waive latent defects or an express warranty claim. A minor punch-list item does not permit rejection of the Equipment or withholding of the entire delivery balance.

7. Site Readiness and Installation. Buyer is responsible for preparing the site before delivery, including approved electrical service, stable network connectivity, level floor space, ventilation and clearances, venue authorization, sanitation access, loading access, and all permits not expressly covered by a separate signed agreement. Bloomjoy is not responsible for delay, damage, or service failure caused by an unready site, unauthorized installation, incompatible service, or Buyer’s contractors. Services beyond those listed in the Order Form require a written change order.

8. Embedded Software and Connectivity. The Equipment may contain firmware, operating software, design files, cloud connectivity, payment integrations, and third-party services ("Embedded Software"). Subject to full payment and compliance with this Agreement, Buyer receives a nonexclusive, nontransferable right to use the Embedded Software solely with the Equipment for its intended commercial operation. The Embedded Software is licensed, not sold. Buyer may not copy, reverse engineer, bypass controls, introduce malicious code, use unauthorized software that creates a safety or compatibility risk, or use the Embedded Software to develop a competing product, except to the limited extent a restriction is prohibited by law. Manufacturer, payment processor, connectivity, and other third-party terms may also apply. This Section does not require Buyer to purchase Bloomjoy Plus.

9. Bloomjoy Plus Is Separate and Optional. Bloomjoy Plus is not a license fee, royalty, or condition of Equipment ownership. Buyer may subscribe or cancel through Bloomjoy's website at then-current pricing and terms. A cancellation is effective at the end of the paid billing period, and fees are not prorated or refunded unless required by law or the online terms state otherwise. Current information is available at <https://www.bloomjoyusa.com/plus>, <https://www.bloomjoyusa.com/terms>, and <https://www.bloomjoyusa.com/billing-cancellation>. A later Plus subscription does not amend this Agreement.

10. Permits and Legal Compliance. Except under a separate Permitted Operations and Commissary Agreement and an active site schedule, Buyer is solely responsible for permits, food-safety approvals, commissary arrangements, taxes, licenses, accessibility, zoning, venue rules, and other legal requirements for possession and operation. No permit is sold, transferred, leased, or granted under this Agreement. Buyer will not represent that Bloomjoy's permit or commissary agreement covers a site or operator without a separate written activation signed by Bloomjoy and any approvals required by the applicable authority.

11. Branding and Custom Artwork. Each party retains its names, logos, and other intellectual property. Buyer grants Bloomjoy and its vendors a limited right to reproduce Buyer-approved artwork solely to produce the ordered wrap or materials. Buyer represents that it has rights to supplied artwork and will indemnify Bloomjoy against a third-party claim arising from that artwork. Buyer may display Bloomjoy branding already affixed to the Equipment but receives no franchise, trademark system, exclusive territory, or right to hold itself out as Bloomjoy's agent. Any broader brand license must be in a separate writing.

12. Care, Maintenance, and Records. Buyer will operate, clean, maintain, and secure the Equipment according to manuals, training, safety notices, and applicable law; use compatible supplies; maintain transaction and service records reasonably needed for support; and promptly stop operation if a condition may threaten health, safety, property, or the Equipment. Buyer is responsible for unauthorized modifications, misuse, vandalism, pests, unsuitable power, network interruption, and ordinary wear unless an express warranty provides otherwise.

13. Limited Warranty and Support. The express warranty and support commitments are limited to the Order Form and Exhibit B. Except for those express commitments and to the maximum extent permitted by law, the Equipment, Embedded Software, and services are provided without other warranties, including implied warranties of merchantability, fitness for a particular purpose, noninfringement, uptime, profitability, or suitability of a site. Some jurisdictions do not allow particular exclusions, so an exclusion applies only to the extent lawful.

14. Confidentiality. Each party will protect the other's nonpublic business, technical, pricing, customer, and security information using reasonable care and use it only for this transaction. This duty does not cover information that is public without breach, already lawfully known, independently developed, or rightfully received without restriction. A required disclosure is permitted if the receiving party gives prompt notice when lawful and reasonably limits the disclosure. Trade-secret obligations survive while the information remains a trade secret; other confidentiality obligations survive three years.

15. Mutual Indemnity. Each party will defend and indemnify the other and its personnel from a third-party claim to the extent caused by the indemnifying party's negligence, willful misconduct, violation of law, or material breach. Buyer's obligation also covers Buyer's operation, products, venue, employees, contractors, and customer claims, except to the extent caused by a covered defect for which Bloomjoy is responsible. Bloomjoy's obligation also covers a claim that Bloomjoy-provided branding or materials, used as authorized, infringe a U.S. intellectual-property right. The indemnified party must provide prompt notice, reasonable cooperation, and control of the defense, but no settlement may admit fault or impose a nonmonetary obligation on it without consent.

16. Limitation of Liability. To the maximum extent permitted by law, neither party is liable for lost profits, lost revenue, loss of data, business interruption, or indirect, incidental, special, exemplary, or consequential damages arising from this Agreement, even if advised they were possible. Bloomjoy's aggregate liability arising from the sale will not exceed the Total Purchase Price actually paid. These limits do not apply to payment obligations, misuse of the other party's intellectual property, breach of confidentiality, indemnification obligations, fraud, gross negligence, willful misconduct, or liability that cannot lawfully be limited.

17. Default and Remedies. A party is in material default if it fails to cure a material nonpayment breach within 10 days after written notice or another material breach within 30 days after written notice, or becomes subject to an insolvency proceeding not dismissed within 60 days. If Buyer does not pay the delivery balance when due, Bloomjoy may suspend nonessential services, pursue the Equipment and proceeds as a secured party, or exercise other lawful remedies. Remedies are cumulative. Neither party is required to continue performance when doing so would violate law or create an immediate safety risk.

18. Force Majeure. Neither party is liable for delay caused by an event beyond its reasonable control, including supplier interruption, carrier delay, port disruption, labor action, natural disaster, epidemic, government action, utility failure, or cyberattack, if it promptly gives notice and uses commercially reasonable efforts to mitigate. This Section does not excuse payment for Equipment already delivered.

19. Governing Law and Forum. California law governs without regard to conflict-of-law rules, and the parties consent to the exclusive state and federal courts located in Santa Clara County, California, unless the Special terms / agreed exceptions in the Order Form expressly state otherwise. Before filing a claim other than for emergency injunctive relief or collection of an undisputed amount, an executive from each party will attempt in good faith to resolve the dispute for at least 15 days after written notice.

20. General. The parties are independent contractors. Neither may bind the other. Buyer may not assign this Agreement before full payment without Bloomjoy's written consent; Bloomjoy may assign it to an affiliate or in connection with a sale of substantially all relevant assets. Notices must be sent to the Order Form contacts by personal delivery, nationally recognized overnight service, certified mail, or email with confirmation of receipt. Waivers must be written. If a provision is unenforceable, it will be modified to the minimum extent necessary and the remainder will continue. This Agreement is the complete agreement for the sale and may be amended only in a signed writing, except that applicable third-party service terms may update under their own terms. Headings are for convenience. Counterparts and electronic signatures are valid. Sections that by their nature should survive will survive, including payment, title and security interest, intellectual property, confidentiality, indemnity, liability limits, and dispute terms.

EXHIBIT A — MACHINE DETAILS

Bloomjoy completes these details from the final order and manufacturer information. Attach the specification sheet rather than asking Buyer to supply technical measurements. Record serial numbers when assigned, no later than delivery.

Serial number(s)	
Machine color and design	
Card reader and payment account	
Internet connection	
Power and machine size	
Included accessories	
Manuals and account access	
Who unloads the machine	
Who sets up the machine	
Startup test	

Approved Attachments

- ☐ Final quote or invoice
- ☐ Final wrap proof and approved artwork
- ☐ Confirmed manufacturer specification sheet
- ☐ Shipping quote and delivery instructions
- ☐ Additional written scope or change order

EXHIBIT B — LIMITED WARRANTY AND SUPPORT

1. Warranty Term. The limited warranty begins on the Agreement date (the Effective Date) and lasts one year. It does not begin again at delivery or setup. Any “up to” public warranty statement is not a substitute for this stated warranty period.

2. Covered Defects. During the warranty term, Bloomjoy will coordinate the manufacturer-backed repair or replacement process for a material defect in parts or workmanship under normal intended use. The remedy may include remote diagnosis, software adjustment, shipment of a replacement part, or another commercially reasonable correction. Replaced parts may be new or functionally equivalent.

3. Exclusions. The warranty does not cover consumables, ordinary wear, cosmetic conditions that do not impair operation, improper cleaning, unauthorized repair or modification, incompatible supplies, vandalism, pests, accident, unsuitable power or network service, environmental conditions, relocation damage, failure to follow manuals or safety instructions, or a third-party payment or connectivity service.

4. Claim Process. Buyer will stop use if continued operation may worsen damage or create a safety risk; contact the designated manufacturer support channel; provide the serial number, photographs or video, logs, and requested diagnostic information; and reasonably cooperate with remote troubleshooting. Buyer must notify Bloomjoy using its contact details in the Order Form if escalation or parts coordination is needed.

5. Labor, Travel, and Shipping. Included labor, freight, duties, travel, and on-site services are limited to the Other included services listed in the Order Form. Any amount not expressly included requires Buyer approval before charge, except reasonable emergency measures requested by Buyer.

6. Support Boundaries. The manufacturer provides first-line technical support through its designated 24/7 WeChat channel, subject to actual availability, time zone, and issue context. Bloomjoy provides onboarding guidance and reasonable escalation coordination during U.S. business hours. Bloomjoy does not promise continuous uptime, a fixed response time, or on-site service unless the Order Form states otherwise.

7. Bloomjoy Plus. Optional Bloomjoy Plus training, playbooks, portal features, or concierge benefits are governed only by the online subscription terms. Subscription status does not expand or reduce the express machine warranty unless a signed order expressly says so.